

## Multiple Choice (10 marks)

1. What is 'unilateral acts'?
  - (a) They are acts that States perform as practice in the context of custom
  - (b) They are acts creating unilateral legal obligations to the acting State
  - (c) Unilateral acts are simply political acts of State devoid of any legal effect
  - (d) Unilateral acts are those that State perform in order to be bound by a treaty
2. Why does communitarianism resemble Aristotle's philosophy more than Kant's?
  - (a) Because Aristotle justified slavery.
  - (b) Because Kant failed to distinguish individual from social morality?
  - (c) Because Aristotle believed that man is a 'social animal'
  - (d) Because Kant regarded the individual as unimportant.
3. What is Kant's 'categorical imperative'?
  - (a) You must not consciously harm another person.
  - (b) You must always act in the best interests of the community.
  - (c) You must treat human beings as means rather than ends.
  - (d) You must act according as if your values apply to everyone.
4. Maine's famous aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misunderstood. In what way?
  - (a) It is misinterpreted as a prediction.
  - (b) His concept of status is misrepresented.
  - (c) It is taken literally.
  - (d) His idea is considered inapplicable to Western legal systems.
5. Which is the least accurate description of legal positivism?
  - (a) It regards morals and law as inseparable.
  - (b) It perceives law as commands.
  - (c) It regards a legal order as a closed logical system.
  - (d) It espouses the view that there is no necessary connection between morality and law.

## True / False (10 marks)

*Answer True or False*

6. True or False: Austin argues that the science of jurisprudence focuses mainly on morality and ethical principles.
7. True or False: The Universal Declaration of Human Rights (UDHR) is a resolution adopted by the UN General Assembly.
8. True or False: The protective principle of jurisdiction is based on the harm to national interests caused by conduct committed abroad.
9. True or False: Adherence to precedent in legal cases is known as the doctrine of stare decisis.
10. True or False: Individuals possess unlimited international legal personality, allowing them to act independently on the global stage.

## Long Form Response (20 marks)

*Answer each question with a clear and complete explanation.*

11. Discuss the Social Fact Thesis in positivism as articulated by Ken Himma, and analyze its implications for understanding law as a social construction.
12. Critically analyze the 'fair play' argument for obeying the law and discuss the implications of an unfair legal system on this duty.

*End of Paper*